Title 32—NATIONAL DEFENSE

Chapter V—Department of the Army

SUBCHAPTER B—CLAIMS AND ACCOUNTS

PART 536—CLAIMS AGAINT THE UNITED STATES

Apprehension of Deserters

Paragraph (c) and (d) of § 536.30 are revised to read as follows:

§ 536.30 **Apprehension.**

* * * * *

(c) *Absentees and deserters to be apprehended.* Except as indicated in paragraph (d) of this section, all absentees and deserters will be apprehended including those who absented themselves without leave or deserted during the period June 25, 1950 to July 27, 1953, inclusive.

(d) *Classes of absentees not to be apprehended or returned to military control.* The following classes of individuals will not be apprehended or returned to military control:

(1) Deserters from the Regular Army during the Spanish-American War.

(2) Deserters during World War I.

(3) Deserters during World War II (December 7, 1941 to July 24, 1947, inclusive).

(4) Peacetime deserters whose trials for desertion are barred by the statute of limitations, 10 U.S.C. 843 (Art. 43, Uniform Code of Military Justice).

(5) Peacetime deserters who have remained in a status of desertion for more than 3 years but whose trials for desertion are not barred by the statute of limitations, 10 U.S.C. 843 (Art. 43, Uniform Code of Military Justice). This subparagraph pertains to deserters who, during all or any portion of the 3 years statutory period from date of AWOL:

(i) Have been confined in a State penal institution or State hospital, or

(ii) Have been residing in a foreign country in which the United States does not have authority to apprehend, or

(iii) Have been aboard any vessel which is not under United States registry, or

(iv) Have been deprived of the protection of the statute of limitations by reason of receipt of sworn charges and specifications by the officer exercising summary court-martial jurisdiction over the command which formerly included the accused.

The periods of absence from the jurisdiction of the United States Government set forth in this subparagraph constitute impediments to the running of the statute of limitations and are excluded from the periods of limitations. Personnel falling within these categories will not be shown on the morning report of any organization as returned to military control nor will DD Form 616 be prepared by the field organization. If these individuals inquire about their status, they will be advised to submit their cases to The Adjutant General, Department of the Army, Washington 25, D.C., ATTN: AGPO–DA.

[C 3, AR 630–10, May 4, 1959] (Sec. 3012, 70A Stat. 157; 10 U.S.C. 3012)

BRUCE EASLEY,
Major General, U.S. Army,
Acting The Adjutant General.

[F.R. Doc. 59–4213; Filed, May 19, 1959; 8:45 a.m.]

Title 33—NAVIGATION AND NAVIGABLE WATERS

Chapter I—Coast Guard, Department of the Treasury

PART 19—WAIVERS OF NAVIGATION AND VESSEL INSPECTION LAWS AND REGULATIONS

Navigation Lights for British Naval Vessels on the Great Lakes, 1959

CROSS REFERENCE: For addition of § 19.60, see Title 46, Part 154, F.R. Doc. 59–4236, *infra*.

Title 38—PENSIONS, BONUSES, AND VETERANS' RELIEF

Chapter I—Veterans Administration

PART 21—VOCATIONAL REHABILITATION AND EDUCATION

Subpart A—Education and Training of World War II Veterans and Vocational Rehabilitation Under 38 U.S.C. Chapter 31

MISCELLANEOUS AMENDMENTS

1. In § 21.225, paragraph (b) is amended and paragraph (c) is added to read as follows:

§ 21.225 **Training of psychiatric patients while on trial visit from Veterans Administration hospital.**

* * * * *

(b) He is currently rated incompetent but has a legally appointed guardian, or

(c) He is currently rated incompetent and has no legally appointed guardian but his subsistence allowance for training under Chapter 31 will be withheld until he is found competent or until a guardian is appointed. In such cases arrangements will be made with the manager of the Veterans Administration hospital to release funds in the veteran's account in the personal funds of patients to be used for the veteran's subsistence while in training.

2. Section 21.281(b) is amended to read as follows:

§ 21.281 **Status "rehabilitated".**

* * * * *

(b) When a trainee discontinues his training for reasons other than fraud or severance of service connection and it is determined that he has accepted employment in an occupation which is compatible with his disability, he will be placed in status "rehabilitated" the day following the last day of instruction or the day following the last day of leave, whichever is applicable. This action is for record purposes only and the veteran will not receive written notice of rehabilitation and shall not be paid subsistence allowance for the 2 months following determination of employability. The veteran's reentrance into training will not be jeopardized by this recording where reentrance is later found warranted.

(72 Stat. 1114; 38 U.S.C. 210)

These regulations are effective May 20, 1959.

[SEAL] BRADFORD MORSE,
Deputy Administrator.

[F.R. Doc. 59–4252; Filed, May 19, 1959; 8:50 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 1848]

[Sacramento 057645]

[1119031]

NEVADA AND CALIFORNIA

Adding Lands to Toiyabe National Forest; Partially Revoking Executive Order No. 4203 of April 14, 1925

By virtue of the authority vested in the President by section 1 of the act of June 4, 1897 (30 Stat. 34, 36; 16 U.S.C. 473) and the act of February 20, 1925 (43 Stat. 952), and pursuant to Executive Order No. 10355 of May 26, 1952, and upon recommendation of the Secretary of Agriculture, it is ordered as follows:

1. Subject to valid existing rights, the following-described lands in Nevada and California are hereby added to and reserved as a part of the Toiyabe National Forest and the boundaries of the said forest are adjusted accordingly:

MOUNT DIABLO MERIDIAN

NEVADA

T. 13 N., R. 18 E.,
Sec. 26, SE¼SE¼;
Sec. 35, Lot 7 and E½NE¼.

CALIFORNIA

T. 20 N., R. 17 E.,
Sec. 24, NW¼SE¼.

The areas described aggregate approximately 195 acres.

2. Executive Order No. 4203 of April 14, 1925, which withdrew lands for classification, is hereby revoked so far as it affects any of the above-described lands.

ROGER ERNST,
Assistant Secretary of the Interior.

MAY 13, 1959.

[F.R. Doc. 59–4220; Filed, May 19, 1959; 8:46 a.m.]